

PROPOSED
SENATE AMENDMENTS TO H.B. 2446
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 <<Section 1. Section 28-3223, Arizona Revised Statutes, is amended
3 to read:

4 28-3223. Original applicant; requirements; expiration;
5 renewal examination

6 A. In addition to the requirements applicable to all driver license
7 applicants, an original applicant for a class A, B or C license is subject
8 to the following requirements:

9 1. The applicant shall submit evidence of compliance with medical
10 standards and requirements that the department adopts by rule.

11 2. The applicant must have held a driver license for at least one
12 year either in this state, any other state or a foreign country.

13 3. The applicant shall take additional knowledge examinations to
14 demonstrate understanding of the following:

15 (a) Safety operation rules.

16 (b) Commercial motor vehicle safety control systems.

17 (c) Safe vehicle control.

18 (d) The relationship of cargo to vehicle control.

19 (e) Basic hazardous materials knowledge.

20 (f) The objectives and proper procedures for performing vehicle
21 safety inspections.

22 (g) Air brake systems.

23 (h) Legal requirements for size, weight and vehicle configurations.

24 (i) Emergency procedures.

1 [(j) ENGLISH PROFICIENCY. THE ENGLISH PROFICIENCY EXAMINATION MUST
2 INCLUDE COMPONENTS OF READING, SPEAKING, WRITING AND LISTENING.]

3 4. In addition to the other requirements of this section, an
4 applicant for a class A driver license shall demonstrate a knowledge and
5 understanding of:

6 (a) Vehicle coupling and uncoupling.

7 (b) Unique combination vehicle inspections.

8 5. The applicant shall take a driving test in a vehicle or vehicle
9 combination that at least meets the minimum size requirements for the
10 class of driver license sought. The driving test shall include a
11 demonstration of familiarity with pretrip inspection procedures.

12 B. A person possessing a commercial driver license on or before
13 June 30, 2005 shall renew the license within eight years according to
14 procedures established by the department.

15 C. Notwithstanding section 28-3171, the holder of a class A, B or C
16 driver license shall renew the license every eight years in a manner
17 prescribed by the department.

18 D. The department may administer an examination to a renewal
19 applicant for a class A, B or C driver license. This examination on
20 renewal shall include the following:

21 1. Evidence of compliance with medical standards adopted by the
22 department.

23 2. Administration of knowledge tests or road tests, or both, as
24 required of an original applicant.>>

25 Sec. 2. Title 28, chapter 14, article 2, Arizona Revised Statutes,
26 is amended by adding section 28-5233, to read:

27 28-5233. Motor carriers; English proficiency required;
28 inspections; definition

29 A. A MOTOR CARRIER IN THIS STATE SHALL DEMONSTRATE ENGLISH
30 PROFICIENCY. ENGLISH PROFICIENCY INCLUDES A MOTOR CARRIER'S ABILITY TO
31 UNDERSTAND AND RESPOND TO VERBAL QUESTIONS AND TO UNDERSTAND HIGHWAY
32 TRAFFIC SIGNS, INCLUDING ELECTRONIC DYNAMIC MESSAGE SIGNS. A SPECIALTY
33 OFFICER OF THE DEPARTMENT OR A LAW ENFORCEMENT OFFICER AUTHORIZED PURSUANT
34 TO SECTION 28-5204 SHALL ISSUE AN OUT-OF-SERVICE ORDER TO A MOTOR CARRIER
35 WHO CANNOT SUFFICIENTLY DEMONSTRATE ENGLISH PROFICIENCY DURING AN
36 INSPECTION.

37 B. ALL ROADSIDE INSPECTIONS SHALL BE CONDUCTED IN ENGLISH AND
38 WITHOUT TOOLS TO FACILITATE COMMUNICATION, INCLUDING INTERPRETERS, CUE
39 CARDS, SMARTPHONE APPLICATIONS OR ON-CALL TELEPHONE INTERPRETATION
40 SERVICES.

1 C. IF A MOTOR CARRIER IS DEEMED PROFICIENT IN ENGLISH BY A
2 SPECIALTY OFFICER OF THE DEPARTMENT OR A LAW ENFORCEMENT OFFICER
3 AUTHORIZED PURSUANT TO SECTION 28-5204, THE REMAINDER OF THE INSPECTION
4 MAY BE CONDUCTED USING THE COMMUNICATION METHODS AND TECHNIQUES BEST
5 SUITED TO FACILITATE THE SAFE AND EFFECTIVE COMPLETION OF THE INSPECTION.

6 D. FOR THE PURPOSES OF THIS SECTION, "OUT-OF-SERVICE ORDER" HAS THE
7 SAME MEANING PRESCRIBED IN SECTION 28-5241.

8 Enroll and engross to conform

9 Amend title to conform

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